

**SUBSTITUTE FOR
HOUSE BILL NO. 4582**

A bill to provide for the liability of possessors of real property for injuries to invitees.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 1. This act may be cited as the "premises liability act".

2 Sec. 2. As used in this act:

3 (a) "Invitee" means an individual who is invited, expressly or
4 impliedly, to enter or remain on premises for a commercial benefit
5 to the possessor of the premises or for a purpose directly or
6 indirectly connected with business dealings with the possessor. An
7 invitation may be express or implied.

8 (b) "Open and obvious" means the condition is known to the
9 invitee or the condition would have been discovered by a reasonably
10 careful person on casual inspection under the circumstances.



1 (c) "Owner" means a person that holds legal or equitable title
2 to premises.

3 (d) "Person" means an individual or a partnership,
4 corporation, limited liability company, association, or other legal
5 entity.

6 (e) "Possessor" means any of the following:

7 (i) A person that is in occupation of the premises with intent
8 to control it.

9 (ii) A person that has been in occupation of the premises with
10 intent to control it, if no other person has subsequently occupied
11 the premises with intent to control it.

12 (iii) A person that is entitled to immediate occupation of the
13 premises, if no other person is a possessor as described in
14 subparagraphs (i) and (ii).

15 (f) "Premises" means real property.

16 Sec. 3. Subject to sections 4 and 5, a possessor has a duty to
17 use ordinary care to protect an invitee from risks of harm from a
18 condition on the possessor's premises if both of the following
19 apply:

20 (a) The risk of harm is unreasonable.

21 (b) The possessor knows or should know of the condition and
22 should realize that the condition involves an unreasonable risk of
23 harm to an invitee. For purposes of this act, a possessor should
24 know of a condition if, in the exercise of ordinary care
25 considering the character of the condition and whether the
26 condition has existed for a sufficient length of time, a possessor
27 exercising ordinary care would discover the condition.

28 Sec. 4. (1) Subject to subsection (2) and section 5, a
29 possessor owes no duty to protect an invitee from, or warn an



1 invitee of, risks of harm from an open and obvious condition on the
2 possessor's premises.

3 (2) Subject to section 5, a possessor must take reasonable
4 precautions to avoid any risk presented by any special features of
5 a condition that is open and obvious that make the condition
6 effectively unavoidable or create an unreasonably high risk of
7 severe harm.

8 Sec. 5. This act does not do any of the following:

9 (a) Affect or impair any defense that may be available to the
10 owner or possessor of premises under any other law.

11 (b) Create a duty of care of an owner that is not also a
12 possessor of the premises.

13 (c) Impair comparative fault under section 2955a or 2959 of
14 the revised judicature act of 1961, 1961 PA 236, MCL 600.2955a and
15 600.2959, or under other law of this state.

16 Sec. 6. The supreme court, or any other court of this state,
17 shall not adopt the standard of the Restatement of Torts, 3rd, or
18 any other standard, that would impose a reasonable care standard,
19 based on all of the circumstances, for premises liability,
20 replacing the standard that imposes liability based on the legal
21 status of the individual who is on the premises.